



THE
FUTURE
OF
FREE
SPEECH

THAT VIOLATES MY POLICIES 2026

AI LAWS, CHATBOTS, AND
THE FUTURE OF EXPRESSION

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The Future of Free Speech is an independent, nonpartisan think tank based at Vanderbilt University. Our mission is to reaffirm freedom of expression as the foundation of free and thriving societies through actionable research, practical tools, and principled advocacy. We envision a world in which the right to freedom of expression is safeguarded by law and strengthened by a culture that embraces diverse viewpoints.

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PREFACE

In the 2026 edition of our report *“That Violates My Policies”: AI Laws, Chatbots, and the Future of Expression*, we explore the ways in which public and private governance of generative artificial intelligence (AI) shapes the space for free expression and access to information.

Since the launch of ChatGPT by OpenAI in November 2022, generative AI has moved from a novelty to a tool embedded in everyday communication and information access.¹ As its reach has grown, so has the urgency for legislators around the world to determine how it should be governed, and what that governance means for freedom of expression and access to information.

Recognizing generative AI’s growing impact on freedom of expression and access to information, The Future of Free Speech undertook a first-of-its-kind analysis of how national legislation and corporate practices shape expression in the era of generative AI. The 2025 report analyzed AI legislation in Brazil, China, the European Union, India, the Republic of Korea, and the United States. It focused on laws and public policies addressing AI-generated content, particularly around elections and political speech, hate speech, defamation, explicit content, copyright, and measures that actively promote freedom of expression.²

This year, we built on those findings and expanded them considerably. This report, the first of two publications The Future of Free Speech will release this year, examines AI legislation, bills, policies, and case law in the European Union, Nigeria, Peru, Sweden, Türkiye, the United Kingdom, the United States, and Vietnam. It considers how these frameworks shape

¹ Generative AI refers to systems that create content — including text, images, video, audio, and software code — in response to user prompts. Cole Stryker and Mark Scapicchio, “What Is Generative AI?,” IBM Think, March 22, 2024, <https://www.ibm.com/think/topics/generative-ai>.

² Jordi Calvet-Bademunt, Jacob Mchangama, and Isabelle Anzabi, *“That Violates My Policies”: AI Laws, Chatbots, and The Future of Expression* (Nashville: The Future of Free Speech, October 2025), <https://futurefreespeech.org/wp-content/uploads/2025/10/AI-Report-2025-Full-Report.pdf>.

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freedom of expression and access to information across election and political content, hate speech, defamation, explicit content, copyright, and measures that empower freedom of expression, such as policies supporting linguistic diversity, media literacy, and open-source development. We have added dedicated sections on protection of minors and AI-powered surveillance to reflect these increasingly salient issues.

This report seeks to provide a rigorous and timely analysis of how generative AI is reshaping the space for free expression in both the public and private spheres. Building on these insights, The Future of Free Speech is developing guidelines to help policymakers ensure that generative AI protects and enhances freedom of expression and access to information, two cornerstones of democratic societies. A second report, focused on model analysis and related good practices for companies, will follow later this year.

In an era of rapid technological change, safeguarding free expression protects both individual rights and the conditions for open, informed, and thriving democracies.



ARTIFICIAL INTELLIGENCE & FREEDOM OF EXPRESSION IN PERU

By

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ABSTRACT

Peru stands out as one of Latin America’s most legislatively active countries on artificial intelligence (AI) and the first in the region to adopt a comprehensive AI regulatory framework. Anchored by Law 31814 (2023) and its implementing regulation (Supreme Decree 115-2025-PCM, effective January 2026), the framework adopts a risk-based approach modeled partly on the European Union’s AI Act. It prohibits mass surveillance without a legal basis and requires algorithmic transparency for high-risk systems. Law 32314 (2025) further introduced the use of AI as an aggravating factor in criminal offenses, including defamation, fraud, and child sexual abuse material (CSAM).

These regulatory advances coexist with three structural tensions that threaten freedom of expression. First, the AI framework establishes prohibitions without a standalone sanctions regime, rendering key protections largely declarative for now. Second, formal bans on real-time biometric identification in public spaces coexist with the rapid expansion of facial recognition infrastructure across Lima and beyond, including documented deployment targeting protesters.¹ Third, AI-specific criminal provisions lack explicit protections for satire, parody, and artistic expression, risking a chilling effect on legitimate speech. On the positive side, Peru’s indigenous language AI initiatives—including projects in Quechua, Aymara, and Awajún—represent a genuine contribution to linguistic pluralism and access to information. The April 2026 general elections, which generated more than 700 disinformation alerts but were held without specific deepfake legislation, illustrate both the urgency and the difficulty of regulating AI-generated content without unduly restricting expression.

¹ León, “Vigilados en secreto: normas, prácticas y silencios en el acceso a información pública sobre vigilancia,” 2025.

1. INTRODUCTION

Peru's constitutional order provides robust formal protections for freedom of expression. Article 2(4) of the 1993 Constitution guarantees the right to information, opinion, expression, and dissemination of thought without prior censorship, while Article 2(5) enshrines the right to request information from public entities.² As a state party to the American Convention on Human Rights, Peru is also bound by its Article 13, which offers one of the broadest protections for free expression in international law, including a near-absolute prohibition on prior censorship.³

In practice, however, these protections have faced persistent challenges. Freedom House downgraded Peru from “Free” to “Partly Free” in 2023 following the ouster of President Pedro Castillo and the violent repression of subsequent protests; its 2025 report assigns Peru a score of 67 out of 100.⁴ The V-Dem Institute classifies Peru among seven Latin American countries “currently regressing” on democratic indicators.⁵ Reporters Without Borders ranks Peru 130th out of 180 countries in press freedom, documenting 392 attacks against press freedom in 2024 alone.⁶ Criminal defamation has historically been used against journalists and critics, creating a baseline chilling effect against which AI-specific provisions must be assessed against.

Peru has emerged as an unlikely regulatory pioneer. It is the first country in Latin America to have enacted a general legal framework on AI together with its implementing regulation, and it has the most AI-related legislative initiatives in the region—at least twenty-five

2 Constitución Política del Perú (1993), art. 2, incs. 4 and 5.

3 American Convention on Human Rights (1969), art. 13.

4 Freedom House, “Peru: Freedom in the World 2025,” accessed April 2026, <https://freedomhouse.org/country/peru/freedom-world/2025>.

5 V-Dem Institute, *Democracy Report 2025: 25 Years of Autocratization* (Gothenburg: V-Dem Institute, 2025), https://www.v-dem.net/documents/54/v-dem_dr_2025_lowres_v1.pdf.

6 Reporters Without Borders, “Peru: Surge in Attacks Against Investigative Journalists,” 2025, <https://rsf.org/en/peru-surge-at-tacks-against-investigative-journalists>.

pending bills as of early 2026.⁷ The regulatory trajectory has been rapid: Law 31814 was enacted in July 2023, Law 32314 followed in April 2025, adding AI as an aggravating factor in criminal offenses; and Supreme Decree 115-2025-PCM established the implementing regulation in September 2025. However, as the Harvard Kennedy School’s Carr-Ryan Center for Human Rights has observed, Peru’s AI governance landscape is characterized by “legislative saturation without regulatory vision”—prolific in drafting declarative laws but deficient in designing enforceable frameworks.⁸

This chapter examines how that rapidly evolving regulatory landscape affects freedom of expression and access to information. It finds that Peru’s formal framework contains several speech-protective features, including open-source mandates and surveillance prohibitions, but that significant risks remain in the areas of criminal defamation, electoral regulation, surveillance, as well as in the absence of safeguards for creative expression.

7 Harvard Kennedy School, Carr-Ryan Center for Human Rights, “Peru’s AI Regulatory Boom: Quantity Without Depth?,” April 23, 2025, <https://www.hks.harvard.edu/centers/carr-ryan/our-work/carr-ryan-commentary/perus-ai-regulatory-boom-quantity-without-depth>. For ongoing analysis and monitoring, check CELE’s own *Observatorio Legislativo*.

8 Harvard Kennedy School, “Peru’s AI Regulatory Boom.”

2. GENERAL STANDARDS OF FREEDOM OF EXPRESSION

Peru's freedom-of-expression framework rests on constitutional, statutory, and international foundations. The 1993 Constitution protects multiple dimensions of expression: the right to information, opinion, expression, and dissemination of thought without prior censorship (Article 2(4)); the right to request and receive information from public entities (Article 2(5)); the right to privacy and honor (Article 2(6)); and the freedom of intellectual, artistic, technical, and scientific creation (Article 2(7)).⁹ Notably press-related offenses are adjudicated in ordinary courts, rather than military or special tribunals.

At the international level, Peru is bound by Article 13 of the American Convention on Human Rights, a provision the Inter-American Court of Human Rights has interpreted as encompassing both an individual dimension (the right to express thoughts) and a social dimension (the right of the public to receive information and ideas).¹⁰ Peru is also a party to the International Covenant on Civil and Political Rights, whose Article 19 protects freedom of expression subject to restrictions that must be provided by law and necessary for the respect of the rights of others or the protection of national security, public order, public health, or morals.

The Constitutional Tribunal (TC) has developed significant jurisprudence on digital expression. In *Iriarte Ahón v. Cateriano* (2019), the TC held that a public official's personal social media account does not become an official channel merely by sharing government information, and that blocking a user from such an account does not deny access to public information.¹¹ In *Coz Barón v. ONPE* (2024), a case brought against Peru's National Office of Electoral Processes, a Superior Court distinguished institutional accounts, holding that public entities may not block citizens from their official social media profiles.¹² In *Arévalo*

⁹ Constitución Política del Perú (1993), art. 2, incs. 4, 5, 6, and 7.

¹⁰ Inter-American Court of Human Rights, Advisory Opinion OC-5/85, "Compulsory Membership in an Association Prescribed by Law for the Practice of Journalism," November 13, 1985, paras. 30-32.

¹¹ Tribunal Constitucional del Perú, Exp. No. 00442-2017-PA/TC (published August 15, 2019).

¹² Segunda Sala Constitucional, Corte Superior de Justicia de Lima, *Coz Barón v. ONPE* (confirmed April 22, 2024).

Ramírez v. Google Peru (2022), the TC provided the first formal articulation of the “right to be forgotten” in Peruvian constitutional law, grounding it in the right to informational self-determination under Article 2(6).¹³

The application of these standards to AI-generated content remains largely untested. No Peruvian court has ruled on whether such content constitutes protected “expression” under Article 2(4), or whether constitutional protections extend to the user employing AI as a creative tool, to the output itself, or to both. The closest judicial engagement came in a 2025 ruling by the Superior Court of Arequipa, which reprimanded a lawyer for submitting an AI-drafted brief, characterizing AI tools as “support instruments, not unquestionable oracles” and warning against “uncritical and delegative” reliance on AI.¹⁴ While this ruling addressed procedural integrity rather than expressive rights, it represents the first Peruvian judicial statement on AI’s status in the production of communicative content.

¹³ Tribunal Constitucional del Perú, Exp. No. 03041-2021-PHD/TC, Sentencia 119/2022.

¹⁴ Segunda Sala Penal, Corte Superior de Justicia de Arequipa, ruling of approximately July 2025, as reported in *Diario Constitucional* (Chile), August 2, 2025.

3. AI LEGISLATION LANDSCAPE

3.1 An Overview of The Legislative Branch's Behavior Regarding AI

From 2023 through May 2026, the Peruvian Congress has considered forty-nine bills, of which five have been enacted. Law 31814, passed in 2023, serves as the general framework for AI; the other four approved laws relate to digital transformation and amend the criminal code to address the use of AI in committing various crimes. Three bills have been withdrawn by their authors, two of which were resubmitted; The rest are still pending. Notable aspects of these bills include:

- **Penalties:** Of the bills that remain pending, eleven include criminal, civil, and administrative penalties. None of the bills proposing criminal penalties creates a new offense; instead, they amend existing criminal law to treat AI as an aggravating factor.
- **Content moderation:** Only two of the bills introduced through May 2026 include provisions on content moderation; both were submitted by the same legislator and contain identical text. The first was withdrawn, and the second is under consideration in committee.

Bill 13075/2025-CR (still under consideration as of May 2026), on disinformation in electoral contexts, empowers the National Elections Board or the Special Electoral Board to order the “immediate removal of disinformation content from media outlets or digital platforms where the misleading material has been distributed; and a fine of 20 Procedural Reference Units will be imposed on those found responsible.” This bill does not define the scope of “misinformation content,” and the same ambiguity extends to the liability regime, which does not specify which actors are liable: those who produce the material or the platforms that host it.

- **Three-part test:** Fifteen proposed bills contain provisions that raise concerns under the three-part test of legality, necessity, and proportionality. The main concerns are the

ambiguity of the proposed texts and the criminalization AI use, which these bills treat as an aggravating factor without clear justification—an approach that also raises questions about proportionality. Likewise, bills that would make the use of AI mandatory in the security sector impose implementation obligations without requiring human rights impact assessments.

3.2 Law 31814: The General Framework AI Statute

Law 31814, enacted on July 5, 2023, established Peru’s foundational AI governance framework.¹⁵ It seeks to advance rather than restrict the use of AI for economic and social development, as part of the country’s digital transformation. It enshrines core principles, including respect for human rights, transparency, proportionality, safety, accountability, and nondiscrimination. The law designates the Secretariat of Government and Digital Transformation (SGTD) within the Presidency of the Council of Ministers (PCM) as the national technical authority on AI, tasked with developing policy, issuing standards, and overseeing compliance. Notably, Law 31814 does not establish a standalone sanctions regime, a gap that persists in the implementing regulation.

3.3 Supreme Decree 115-2025-PCM: The Implementing Regulation

Published on September 9, 2025, and effective January 22, 2026, Supreme Decree 115-2025-PCM is one of the most comprehensive AI regulations in Latin America.¹⁶ Its thirty-six articles and six complementary provisions establish a risk-based classification system inspired by the EU AI Act, organizing AI applications into three tiers: prohibited, high-risk, and acceptable uses.

Prohibited uses (*uso indebido*) include AI systems designed to deceptively manipulate decision-making by exploiting cognitive, emotional, or socioeconomic vulnerabilities; real-time biometric identification in public spaces (with narrow exceptions); mass surveillance without a legal basis; predictive policing through profiling; inference of sensitive personal characteristics from biometric data; and lethal autonomous systems in civilian settings

¹⁵ Ley No. 31814, “Ley que promueve el uso de la inteligencia artificial en favor del desarrollo económico y social del país,” El Peruano, July 5, 2023.

¹⁶ Decreto Supremo No. 115-2025-PCM, “Reglamento de la Ley No. 31814,” El Peruano, September 9, 2025.

without human oversight.¹⁷

High-risk uses encompass AI deployed in critical infrastructure, health, education, employment, credit scoring, public services, and criminal justice support—areas where decisions significantly affect fundamental rights.¹⁸ For high-risk systems, the regulation mandates algorithmic transparency: developers must provide clear, advance disclosures about the system’s purpose, capabilities, and the types of decisions it makes. Deployers may add a visible label to inform users when AI is in use, though the regulation frames this as discretionary rather than requiring it for all AI content.¹⁹ The regulation also requires publicly funded AI code to be published under open licenses—a provision that actively supports open-source development and, by extension, diverse AI ecosystems.²⁰

The regulation creates the National Center for Digital and AI Innovation (CNIDIA) and a citizen alert portal at gob.pe/iaperu for reporting suspected misuse. Implementation of algorithmic transparency requirements and other obligations for private-sector developers and deployers is phased: health, education, justice, and finance sectors have until September 2026; transport, commerce, and labor until 2027; production, agriculture, and energy until 2028; and all remaining sectors until 2029.²¹

A weakness of the framework is the absence of direct sanctioning authority for the SGTD. When noncompliance is detected, the SGTD must refer cases to the Comptroller General (for public officials), the National Institute for the Defense of Free Competition and the Protection of Intellectual Property (INDECOP), the National Data Protection Authority (ANPDP), or the Public Prosecutor’s Office—authorities that operate under their own mandates and timelines.²² The SGTD was further mandated to issue ethical guidelines and technical specifications within 180 working days (approximately June 2026), but as of May 2026, these complementary norms had not yet been published.²³

¹⁷ D.S. 115-2025-PCM, arts. 22-23.

¹⁸ D.S. 115-2025-PCM, art. 24.

¹⁹ D.S. 115-2025-PCM, art. 25.

²⁰ D.S. 115-2025-PCM, art. 18.

²¹ D.S. 115-2025-PCM, Primera Disposición Complementaria Final.

²² Hiperderecho, “Nuevo Reglamento de IA en el Perú, y ¿nuevas garantías frente a malos usos?,” September 2025, <https://hiperderecho.org/2025/09/nuevo-reglamento-de-ia-en-el-peru-y-nuevas-garantias-frente-a-malos-usos/>.

²³ D.S. 115-2025-PCM, Segunda Disposición Complementaria Final.

3.4 Law 32314: AI As A Criminal Aggravating Factor

Law 32314, published on April 29, 2025, took a different approach, treating the use of AI in criminal activity as an aggravating factor rather than creating new AI-specific offenses.²⁴ The law modifies Article 46 of the Penal Code to establish the use of AI or analogous technologies as a general aggravating circumstance, allowing judges to exceed the statutory maximum by up to one-third.

Specific provisions address CSAM with AI-generated deepfakes (Article 129-M: six to ten years' imprisonment); defamation through AI, including the dissemination of false or denigrating information via manipulated images, audio, or video (Article 132: one to three years' imprisonment plus fines); aggravated fraud using AI-manipulated voice or identity (Article 196-A: up to eight years); and copyright infringement facilitated by AI (Articles 217-220-C).²⁵

The defamation provision is the most consequential for freedom of expression. Peru already maintains criminal defamation laws, which international human rights bodies have repeatedly urged states to reform.²⁶ Adding an AI-specific aggravating factor deepens rather than mitigates this concern, particularly because Law 32314 contains no explicit exceptions for satire, parody, or artistic expression in the AI context.

3.5 Related Legislation and Pending Bills

The broader regulatory ecosystem includes several other instruments. The Personal Data Protection Law (Law 29733) and its updated regulation (Supreme Decree 016-2024-JUS) address automated decision-making, profiling, and the right to an explanation, creating a framework applicable to AI systems that process personal data.²⁷ Resolution 003-2023 of the Supervisory Body for Private Investment in Telecommunications (OSIPTEL) strengthened net neutrality protections by requiring that content blocking or filtering be authorized only by norms with the rank of law—perhaps the most direct safeguard for digital

²⁴ Ley No. 32314, El Peruano, April 29, 2025.

²⁵ Ley 32314, arts. 1-2. See also Allende & Brea, “La inteligencia artificial llega al Código Penal peruano,” May 27, 2025.

²⁶ See, e.g., IACHR, Office of the Special Rapporteur for Freedom of Expression, The Inter-American Legal Framework Regarding the Right to Freedom of Expression (2009), para. 109 (recommending decriminalization of defamation).

²⁷ Ley No. 29733 (2011), art. 32; D.S. No. 016-2024-JUS (November 2024).

freedom of expression in Peruvian law.²⁸

In Congress, legislative hyperactivity continues. At least twenty-five AI-related bills were pending as of early 2026, including Bill 13975/2025-CR, proposing a ninety-day pre-election ban on AI-generated deepfakes of candidates (not enacted before the April 2026 elections); Bill 07687/2023-CR, promoting biometric surveillance cameras but providing no safeguards for vulnerable communities; and Bill 07033/2023-CR, proposing comprehensive regulation with twelve prohibited AI uses and the principle that “AI must not lie to a human being.”²⁹ As Óscar Montezuma Panez has cautioned, “the most reasonable course would be to allow the law and its regulations to mature before introducing additional burdens.”³⁰

28 OSIPTEL, Resolución No. 003-2023-CD/OSIPTEL, January 9, 2023.

29 See Harvard Kennedy School, “Peru’s AI Regulatory Boom”; El Comercio, “Congresista Carlos Anderson presenta proyecto para prevenir la desinformación electoral,” November 4, 2025.

30 Óscar Montezuma Panez, Chambers and Partners, “Peru Takes Its First Steps Toward AI Regulation,” September 29, 2025.

4. ELECTION AND POLITICAL CONTENT

Peru's general elections of April 12, 2026—the most fragmented in recent history, with thirty-seven candidates and none polling above 15 percent—took place without any specific legislation addressing AI-generated content in electoral processes.³¹

While Supreme Decree 115-2025-PCM prohibits AI systems that deceptively influence decision-making by exploiting vulnerabilities, this provision lacks a dedicated sanctions regime and was described by the legal supplement of the official gazette *El Peruano* as “a declaration of principles without direct legal consequence.”³² Resolution 0112-2025-JNE, the National Jury of Elections (JNE) regulation on electoral campaign advertising, governs digital communications but does not explicitly reference AI or deepfakes.³³ Bill 13975/2025-CR, which would have prohibited AI-manipulated candidate images during the ninety days preceding elections, remained in committee throughout the electoral period.³⁴

Law 32314 offers an imperfect substitute. It is not clear whether its defamation aggravating factor applies to political deepfakes that damage a candidate's reputation, or whether its fraud provisions cover AI voice cloning used for electoral manipulation. The law includes no exceptions for political satire, parody, or commentary—forms of expression that lie at the heart of democratic discourse.³⁵

These provisions appear to respond to a concern shared by Peruvian politicians and civil society organizations. The JNE issued over 700 disinformation alerts during the campaign, reactivated its Fact-Checking Committee in 2025, and acquired AI-powered tools for monitoring social media.³⁶ Deepfake videos of public figures, including President Dina

31 *El Peruano*, Suplemento Legal Jurídica, “Propaganda digital encubierta y retos legales en campaña 2026,” March 2026.

32 *El Peruano*, “Propaganda digital encubierta.”

33 JNE, Resolución No. 0112-2025-JNE, March 12, 2025 (published April 19, 2025).

34 *Gestión*, “Congreso busca prohibir uso de IA en las elecciones: ¿se evitará la difusión de deepfakes?,” November 8, 2025.

35 Ley 32314, arts. 132 and 196-A of the Penal Code as modified.

36 Infobae, “IA en Fake News — Elecciones 2026: Expertos y autoridades proponen acciones,” December 17, 2025.

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Boluarte, ministers, and journalists, were already circulating on Facebook and Instagram, primarily in connection with financial scams.³⁷ Civil society organizations, including Goberna Digital in partnership with the Press and Society Institute (IPYS) and Transparencia, developed an AI-based verification platform, though it remained in beta at the time of the elections.³⁸

However, the absence of specific regulation also spared Peru the risks of overbroad restrictions on electoral speech. As the California’s experience illustrates—a court there struck down AB 2839 on constitutional grounds—hastily drafted deepfake prohibitions can chill legitimate political expression.³⁹ Peru’s challenge will be to regulate AI in elections in a way that addresses deceptive manipulation without stifling the satirical, critical, and creative uses essential to democratic debate.

³⁷ La República, “Deepfakes en campaña: una amenaza que podría influir en los peruanos,” August 23, 2025.

³⁸ Gestión, “¿Adiós a las fake news en campañas electorales? Crean IA para evaluar a candidatos en Perú,” August 29, 2024.

³⁹ Kohls v. Bonta, Case No. 2:24-cv-02527-JAM-CKD (E.D. Cal. Aug. 29, 2025).

5. HATE SPEECH

Peru does not have a general hate speech law. Article 323 of the Penal Code criminalizes discrimination, punishable by two to three years' imprisonment, and Law 31155 (2021) addresses the prevention and punishment of racism and racial discrimination. As a party to the American Convention on Human Rights, Peru is obligated to prohibit “any advocacy of national, racial or religious hatred that constitute incitements to lawless violence or to any other similar action against any person or group of persons on any grounds including those of race, color, religion, language, or national origin.” (Article 13(5))⁴⁰ None of these provisions specifically references AI.⁴¹

Law 32314's general aggravating factor (Article 46) could theoretically apply if a discrimination offense were committed through AI, allowing the penalty to exceed the statutory maximum up to one-third. However, no reported cases has applied hate speech rules to AI-generated content in Peru. No guidelines govern how AI models should address hate speech, and the AI regulatory framework (Law 31814 and Supreme Decree 115-2025-PCM) is silent on the question.

For freedom of expression, the absence of AI-specific hate speech regulation is neither clearly positive nor negative. On the one hand, it avoids the risks of overbroad content regulation that could suppress legitimate criticism or political expression. On the other hand, it leaves open how automated systems that generate or amplify discriminatory content should be governed, particularly in a country where racial discrimination remains systemic and where institutional capacity to distinguish harmful discrimination from protected expression is limited.

40 American Convention on Human Rights, “Pacto de San José de Costa Rica,” November 22, 1969, art. XIII; Office of the Special Rapporteur for Freedom of Expression of the Inter-American Commission on Human Rights, *Discursos de Odio en la Convención Americana sobre Derechos Humanos: Alcance del Artículo 13.5 y recomendaciones*, OEA/Ser.L/V/II CIDH/RELE/INF.36/25.

41 Código Penal, art. 323 (as modified by Decreto Legislativo No. 1323, 2017); Ley No. 31155 (2021).

6. DEFAMATION

Peru's treatment of AI-generated defamation is perhaps the most direct tension between its AI regulation and freedom of expression. The country retains criminal defamation—an offense that international human rights bodies, including the IACHR's Special Rapporteur for Freedom of Expression, have consistently urged states to abolish or reform, given its disproportionate chilling effect on journalistic and political speech.⁴²

Law 32314 deepened this concern by modifying Article 132 of the Penal Code to specifically address defamation committed through AI, including “deepfakes or other AI-generated content that disseminates false or denigrating information causing damage to reputation or image.” The offense carries one to three years' imprisonment plus a fine of 120 to 365 días-multa, each unit calculated as a fraction of the defendant's daily income. The AI aggravating factor allows the sentence to exceed the statutory maximum by up to one-third.⁴³

Several features of this provision raise freedom of expression concerns. First, the law contains no explicit exception for satire, parody, or artistic expression—forms of communication that frequently involve exaggeration, distortion, or fictionalization of public figures and that are protected under both the Peruvian Constitution and the American Convention on Human Rights. Second, Peru lacks a “public figure” doctrine comparable to the US actual malice standard, meaning that even prominent politicians receive the same reputational protection as private individuals. Under the Inter-American human rights system, discourse about public-interest issues and politicians is granted a higher level of protection than other forms of expression because of its importance to the exercise of human rights and the preservation of democracy. Third, liability attaches to the person who disseminates the content rather than to the AI provider. No intermediary liability framework exists for AI providers—Legislative Decree 1724 (February 2026) introduced a safe-harbor

42 IACHR, Office of the Special Rapporteur for Freedom of Expression, “The Inter-American Legal Framework,” para. 109.

43 Ley 32314, modifying Código Penal, art. 132. See Marcasur, “Perú refuerza la legislación penal frente al uso indebido de la inteligencia artificial,” May 5, 2025.

regime for internet service providers, but it does not extend to AI systems.⁴⁴

No case has yet been brought under Law 32314's AI defamation provisions, and no Peruvian court has awarded damages in a defamation case involving AI-generated content. Nonetheless, the legal architecture is in place for such claims, and Peru's history of using criminal defamation against journalists and critics—including the 2010 conviction of blogger José Alejandro Godoy—suggests that the AI aggravating factor could amplify existing chilling effects.⁴⁵

44 Decreto Legislativo No. 1724 (February 2026); see also Polemos, "Protección de Datos Personales y IA," 2025.

45 On the Godoy conviction, see various reports from IPYS and the Committee to Protect Journalists.

7. PROTECTION OF MINORS

Peru has addressed the intersection of AI and child protection primarily through criminal law. Law 32314 modified Article 129-M of the Penal Code to criminalize the production, distribution, and possession of AI-generated child sexual abuse material, including deepfakes, with penalties of six to ten years' imprisonment.⁴⁶

The need for such provision was underscored in August 2023 by the St. George's College case, in which students aged thirteen and fourteen used AI tools to create deepfake nude images of female classmates, and distributed them via WhatsApp. This case prompted Peru's first criminal investigation directly involving AI-generated content.⁴⁷

The implementing regulation (Supreme Decree 115-2025-PCM) establishes design obligations requiring that AI-supported digital services “fully consider the differentiated needs of girls, boys, and adolescents” and ensure that services are “safe, sustainable, stable, and digitally inclusive.”⁴⁸ The regulation also promotes responsible AI use within the national education curriculum. It does not, however, specify how these services are to distinguish adult users from minors. Peru has not, for example, adopted specific age-verification requirements for children accessing AI tools, nor has it regulated AI companions or chatbots designed for minors—areas of growing concern internationally, as illustrated by the ongoing litigation against Character Technologies in the United States.

In principle, the current framework does not appear to unduly restrict minors' or adults' freedom of expression or access to information. The risk lies primarily in future implementation; safety-by-design requirements, if interpreted broadly, could lead to overly cautious content restrictions that limit access to legitimate information.

⁴⁶ Ley 32314, modifying Código Penal, art. 129-M.

⁴⁷ Reports from Gestión, La República, and Infobae, August 2023.

⁴⁸ D.S. 115-2025-PCM, art. 12.

8. EXPLICIT CONTENT

Peru lacks specific legislation addressing AI-generated nonconsensual intimate images (NCII) of adults. Law 30838 criminalizes the distribution of intimate images without consent but does not reference AI-generated content.⁴⁹ Law 32314's provisions on AI-generated explicit content are limited to material involving minors (Article 129-M).

In no documented cases have explicit content rules been used to suppress protected expression, including LGBTQ+ content and political dissent. However, Peru's broader legislative environment creates latent risks. In 2024, the legislature banned gender-neutral language in official education documents. In 2025, Human Rights Watch criticized a new law purporting to protect children's "sexual integrity" as "vague and overly broad." The law could be applied to suppress expressions of identity, educational materials, and artistic content.⁵⁰ Peru does not recognize same-sex marriage or civil unions, and conservative social norms around *buenas costumbres* (good morals) could be invoked to restrict AI-generated LGBTQ+ content, though no such application has been documented.

⁴⁹ Ley No. 30838 and modifications.

⁵⁰ Human Rights Watch, "Peru: New Law Threatens Free Speech, Trans Rights," May 19, 2025.

9. COPYRIGHT

The intersection of copyright and AI, Peru’s framework raises issues of both authorship and training data. Legislative Decree 822 (the Copyright Law) defines “author” exclusively as a natural person, meaning that works generated solely by AI fall outside copyright protection.⁵¹ The same requirement appears in Andean Community Decision 351, the regional copyright framework binding in Bolivia, Colombia, Ecuador, and Peru, which similarly requires human authorship.⁵²

In September 2024, INDECOPI’s Copyright Office issued two landmark decisions denying copyright registration for works created using the AI platform Artbreeder, on the grounds that AI “lacks the capacity to create with intentionality, artistic context, or personal consciousness” and that prompts alone do not constitute authorship.⁵³ These decisions leave purely AI-generated works outside copyright protection, which enhances access to information but denies creators intellectual property protection over such outputs.

Regarding training data, neither Peruvian copyright law nor Andean Decision 351 contains a text-and-data-mining exception that would permit the use of copyrighted materials for AI training without authorization. The limitations and exceptions listed in Articles 21 and 22 of Decision 351 are exhaustive and do not contemplate computational uses.⁵⁴ This absence may limit the development of locally relevant AI models—particularly in Indigenous languages—by creating legal uncertainty about the use of existing cultural and linguistic materials as training data.

Law 32314 introduced criminal aggravating factors for AI-facilitated copyright infringement, but the standard requires criminal intent (*dolo*), not strict liability.⁵⁵ In no documented

51 Decreto Legislativo No. 822, art. 2.

52 Comunidad Andina, Decisión 351 (December 17, 1993), art. 3.

53 INDECOPI, Oficina de Derecho de Autor, decisions of September 2024 (Kevin Rosales/Artbreeder applications). See Union Andina, “Generative AI & Copyright Rulings 2025 – Peru & Colombia,” July 22, 2025.

54 Decisión 351, arts. 21-22.

55 Ley 32314, modifying Código Penal, arts. 217-220-C.

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Peruvian case have copyright rules been used to suppress sensitive AI-generated content, such as political or journalistic material.

10. AI-POWERED SURVEILLANCE

Mass surveillance is one of the gravest dangers to freedom of speech, and one of the most complex to combat in the digital age. Surveillance need not to be followed with active repression every time to affect freedom of speech. Simply knowing or suspecting that one might be watched or followed is enough to have what is called a “chilling effect” on a population: people refrain from expressing dissent, much less protesting, because they fear the potential retaliation that might come from the state systematically watching their every move.⁵⁶ As Murray and colleagues have shown, state surveillance leads to self-censorship, discourages organizing, and erodes trust among members of civil society.⁵⁷ Today, AI could rapidly escalate the surveillance capabilities of public and private entities worldwide.

State frameworks for implementing international human rights law have failed to keep pace with technological advances, allowing invasive digital surveillance—which should remain exceptional under international law because of its impact on privacy and freedom of expression—to become increasingly normalized. The IACHR’s Special Rapporteur for Freedom of Expression has documented severe, widespread consequences across the Americas: human rights defenders, journalists, lawyers, environmental activists, opposition leaders, and public health experts are targeted and left unaware of what information was collected or how it will be used against them. This surveillance operates as one component of repression, often preceding physical harm. Its with effects extend beyond individuals to their families and society at large, undermining human rights defense, press freedom, public discourse, and democracy itself. The commercialization of surveillance tools has fundamentally changed the risk landscape by enabling extraterritorial persecution of investigative journalists, diaspora communities, and state officials. Addressing the root causes of this overuse has become politically urgent.⁵⁸

⁵⁶ Penney, “Chilling Effects. Repression, conformity, and power in the digital age,” 2025.

⁵⁷ Murray et al., “The Chilling Effects of Surveillance and Human Rights: Insights from Qualitative Research in Uganda and Zimbabwe,” 2023.

⁵⁸ Relatoría Especial para la Libertad de Expresión. El impacto de la vigilancia digital en la libertad de expresión en las Américas. Comisión Interamericana de Derechos Humanos. OEA/Ser.L/V/II CIDH/RELE/ INF.33/25 Septiembre 2025.

Peru presents perhaps the most acute surveillance paradox in the region: formal prohibitions coexisting with rapid practical expansion, creating documented chilling effects on expression and assembly. Six security-related bills before congressional committees would require, rather than merely permit, the deployment of AI-based surveillance systems.

10.1 Formal Prohibitions

Supreme Decree 115-2025-PCM explicitly prohibits several surveillance-related AI uses: mass surveillance conducted without legal basis or in a manner that disproportionately affects fundamental rights; real-time biometric identification in public spaces (with narrow exceptions for terrorism, kidnapping, and other specified crimes); inference of sensitive traits such as ethnic origin, sexual orientation, or political opinions from biometric data; and criminal-propensity prediction based on profiling.⁵⁹ These restrictions resemble those in the EU's AI Act, but the European instrument is stricter, prohibiting a wider range of surveillance practices.⁶⁰ As section 10.5 explains, the Peruvian regulation also leaves considerable room for state surveillance by permitting it wherever a “legal basis” exists.

10.2 Practical Expansion

Despite these prohibitions, AI-powered surveillance infrastructure has expanded rapidly. The Peruvian National Police (PNP) has deployed the IREX system, 177 AI-equipped cameras across Lima with facial recognition, license plate reading, person counting, and weapon detection capabilities. The Municipality of Lima connected over 3,000 cameras across forty-three districts to the PNP's 105 emergency call center, with footage cross-referenced against a Ministry of Interior database of wanted persons.⁶¹ Multiple districts have installed their own AI surveillance systems, including Miraflores (nearly 600 cameras), La Victoria (160+ cameras in the Gamarra commercial district), and Ica (a C5 center with 485 cameras connected to a database of 17,000 wanted persons). The PNP has announced plans to install facial recognition systems on public transport buses, and the EUROFRONT program—an EU-funded cooperation initiative—has deployed facial recognition and

59 D.S. 115-2025-PCM, arts. 22-23.

60 González Mama et al., “Gobernanza global de la IA: ¿quién regula, con qué enfoque y para quién?” 2025.

61 TVPerú, “Municipalidad de Lima conecta 3,000 cámaras de seguridad a la Central 105 de la PNP,” 2025.

biometric registration at the Desaguadero border crossing on the Peru-Bolivia border.⁶²

10.3 Documented Abuses and Chilling Effects

The gap between formal prohibition and practical deployment has produced documented harms. In 2015, Peru's National Intelligence Directorate (DINI) conducted over 100,000 data searches to compile surveillance files on more than 1,000 individuals, including politicians, journalists, and business leaders, leading to the prime minister's censure by Congress.⁶³ In 2025, Reporters Without Borders documented that at least eight investigative journalists, all of whom had exposed corruption involving President Boluarte, were subjected to surveillance, legal proceedings, and communication interception requests.⁶⁴ Hiperderecho, Peru's leading digital rights organization, documented that the Municipality of Lima deployed facial recognition cameras to identify participants in protests during the 2023 Fiestas Patrias mobilizations, a practice it argued was unconstitutional.⁶⁵

The so-called Stalker Law (Legislative Decree 1182, 2015) further compounds these concerns by allowing police to access real-time cell phone location data without a judicial warrant and compelling telecommunications companies to retain the entire population's communications metadata for three years.⁶⁶

10.4 Structural Contradictions

Access Now and Hiperderecho have criticized the regulation's mass surveillance prohibition as too narrow, noting that it only bars surveillance "without legal basis"—meaning any future law could effectively authorize it. The national defense and security sector is explicitly excluded from the regulation's scope, meaning that it does not have to adhere to the obligations and restrictions imposed by Law 31814 or its regulation; the security sector has until September 2026 to comply with even the existing provisions.⁶⁷ The practical

62 On EUROFRONT, see FIIAPP, "Desaguadero, a Key Border in the Fight Against Organised Crime," and AISur, "Facial Recognition and Surveillance Technologies in Latin America" (2025).

63 Electronic Frontier Foundation, "Peru's Unhappy History with Surveillance, and How to Fix It," October 2016.

64 RSF, "Peru: Surge in Attacks Against Investigative Journalists."

65 Hiperderecho, various reports on facial recognition and protests, 2023-2025; see also Access Now, "Cámaras con reconocimiento facial en Lima," 2025.

66 Decreto Legislativo No. 1182 (2015). See EFF, "Stalker Law, or How Did the Government Legalize Mass Surveillance of Innocent Peruvians," August 2015.

67 Access Now, "Reglamento de IA en Perú: aciertos y preocupaciones," 2025.

result is a framework that formally protects against AI-powered surveillance while lacking the institutional capacity to prevent its expansion, creating what Privacy International has described as a persistent tension between security imperatives and rights protections in Peru.⁶⁸

10.5 Bills

The six bills related to security and defense would expand AI-based surveillance in the following ways:

- **Bill 05183/2022-CR** would promote the use of AI to improve public safety in Peru, as a tool for preventing, investigating, and punishing violations or crimes.
- **Bill 05814/2023-CR** would make the use of AI a function of the Public Prosecutor's Office for the investigating crimes and bringing criminal charges.
- **Bill 07687/2023-CR** would declare the nationwide installation of surveillance cameras equipped with AI a matter of public necessity and national interest, as a measure to combat public insecurity, and to prevent, investigate, and punish violations and crimes.
- **Bill 09713/2024-CR** would create a national video surveillance system that uses AI for biometric recognition and a national video surveillance fund to strengthen deterrence and the investigation of violations and crimes.
- **Bill 13427/2025-CR** would strengthen public safety by using AI in video surveillance systems and regulating the procurement of mobile phone SIM cards.
- **Bill 14530/2025-CR** would promote the gradual technological modernization of the service and would establish minimum standards for the institutional use of video analytics and AI in crime prevention and local security.

68 Privacy International, "Privacy Is Security: An Op-Ed from Peru," 2019.

11. MEASURES EMPOWERING FREEDOM OF EXPRESSION

11.1 Open-Source AI Promotion

The implementing regulation promotes open-source AI development. Article 18 directs public administration entities to foster open-source AI “to reduce barriers to entry to the technological ecosystem,” and tasks the SGTD, the National Council for Science, Technology and Innovation (CONCYTEC), and academic institutions with supporting open-source developer communities.⁶⁹ The source code of AI systems financed with public funds must be published under open licenses on Peru’s National Public Software Platform. This mandate supports transparency, enables independent auditing, and encourages diverse AI development—all of which strengthen the conditions for free expression.

11.2 Indigenous Language AI Initiatives

Peru’s most distinctive contribution to freedom of expression in the AI field lies in initiatives promoting linguistic and cultural plurality. Several projects deserve particular attention. Quispe Chequea, developed by the investigative outlet Ojo Público, uses generative AI to produce audio news content in Quechua, Aymara, and Awajún, and has trained staff at twelve radio stations across Amazonian and Andean regions since early 2024.⁷⁰ Illariy, a project of Radio TV San Marcos (UNMSM), generates Quechua-language audio news achieving 80 to 90 percent accuracy relative to human speech.⁷¹ The AI-MARA project, led by Peruvian engineer Erick Apaza, developed an Aymara AI translation model whose success led Venga Global to recruit him for Google’s Aymara-to-English translation efforts; Google Translate now includes both Quechua and Aymara.⁷² The Ministry of Education’s Kumitsari project links digital technologies with indigenous-language teaching across six

69 D.S. 115-2025-PCM, art. 18.

70 LatAm Journalism Review, “Projects Use Generative AI to Bring Indigenous Languages to the News in Peru,” 2024.

71 LatAm Journalism Review, “Projects Use Generative AI.”

72 Peru Reports, “From Cattle to Coding: The Inspiring Journey of a Peruvian AI Engineer Helping Google Translate Aymara to English,” 2024.

languages.⁷³

These initiatives address a fundamental access-to-information challenge: Peru recognizes forty-eight indigenous languages, yet the vast majority of digital content—including that generated by AI—is available only in Spanish and English. By developing AI tools for indigenous languages, these projects expand millions of Peruvians’ ability both to produce and to receive information.

11.3 AI Literacy and Accessibility

Government AI literacy efforts, while emerging, remain limited in scale. The National AI Strategy (ENIA 2021-2026) includes a talent development pillar. Twenty-five workshops were delivered to 786 educational leaders during Peru’s APEC presidency in 2024.⁷⁴ The Eligiendo Mi Camino program, which received a World Bank Innovation Award, planned to introduce AI-powered tutoring across one hundred public schools in Lima in 2026.⁷⁵ The Universidad Nacional de Ingeniería launched Peru’s first Bachelor of Science in AI. However, these efforts are dwarfed by the country’s digital infrastructure gaps, particularly in rural areas, where significant inequalities in digital literacy persist.

Isolated examples of AI accessibility for vulnerable populations include two initiatives. Judge Jorge Luis Linares Cuadros of the Constitutional Court of Arequipa, who uses Google’s NotebookLM to generate accessible summaries of complex constitutional decisions for vulnerable litigants. The ChatBot-Juntos program, an AI chatbot deployed during the COVID-19 pandemic for mental health screening, reached over 2,000 people across twenty-one regions.⁷⁶

11.4 Civil Society

Peru’s digital rights community, led by Hiperderecho (a member of the AISur regional network), has documented surveillance abuses, challenged facial recognition deployments, submitted comments on draft AI regulation, and filed freedom-of-information requests

73 Ministry of Education of Peru, Kumitsari project information.

74 APEC, “Transforming Education in APEC: How AI and Emerging Technologies Can Shape Future Skills — Peru’s Experience,” 2024.

75 Various reports on the “Eligiendo Mi Camino” program.

76 LP Derecho, “Juez usa inteligencia artificial para explicar sentencias a litigantes vulnerables,” 2025.

on surveillance protocols.⁷⁷ IPYS and Transparencia have developed electoral fact-checking tools. These organizations perform accountability functions that the formal framework lacks.

⁷⁷ Hiperderecho, “Inteligencia artificial” archive, <https://hiperderecho.org/a/inteligencia-artificial/>.

12. MISCELLANEOUS

While Peru's case merits particular attention, the legislative patterns it displays are regional rather than uniquely Peruvian. According to the most recent figures CELE's Legislative Observatory, almost 60 percent of the bills seeking to restrict freedom of expression in Argentina, Brazil, Chile, Colombia, Ecuador, Guatemala, Mexico, Paraguay, and Peru did so without meeting the requirements of legality, necessity, and proportionality.⁷⁸ Out of 195 bills on AI presented from 2023 to 2025, 80 were deemed potentially incompatible with freedom of expression.⁷⁹ Latin America has been legislatively active on AI, but most of the bills presented are never enacted.

Returning to Peru, three additional factors merit consideration. First, Peru's legislative hyperactivity creates regulatory uncertainty. With more than twenty-five AI bills pending in Congress, many of them declarative or redundant, the risk of overregulation before the current framework matures is substantial. According to data compiled by CELE's Legislative Observatory on Freedom of Expression, fifteen of the forty-six bills tracked between 2023 and May 2026 do not meet the three-part test for freedom of expression.⁸⁰ Óscar Montezuma Panez has cautioned against premature additional burdens, and Sebastian Smart and Victor M. Montori have described this phenomenon as "performative regulation."⁸¹

Second, Peru's OECD accession process, ongoing since 2022, serves as an external incentive for rights-protective AI governance. The OECD AI Principles, to which Peru is a formal adherent, emphasize transparency, accountability, and human rights.⁸² The accession review

78 Centro de Estudios en Libertad de Expresión, 2026, <https://celeup.org/en/legislative-observatory/>.

79 Centro de Estudios en Libertad de Expresión, AI Legislation database, 2026.

80 Centro de Estudios en Libertad de Expresión, AI Legislation database, 2026.

81 Óscar Montezuma Panez, "Peru Takes Its First Steps Toward AI Regulation," Chambers and Partners, September 29, 2025; Sebastian Smart and Victor M. Montori, "Peru's AI Regulatory Boom: Quantity Without Depth?," Carr-Ryan Center for Human Rights, Harvard Kennedy School, April 23, 2025.

82 González Mama et al., "Gobernanza global de la IA: ¿quién regula, con qué enfoque y para quién?," 2025.

may help anchor Peru's AI framework in international best practices.⁸³

Third, OSIPTEL's 2023 modification of net neutrality rules, which requires that content blocking be authorized only by norms having the rank of law, may be the strongest direct protection for digital expression in Peru's regulatory framework. It bars officials from ordering the removal of content, including through AI-assisted moderation, unless a statute authorizes them to do so.⁸⁴

83 On Peru's OECD process, see D.S. No. 041-2023-PCM (declaring OECD accession of national interest).

84 OSIPTEL, Resolución No. 003-2023-CD/OSIPTEL.

13. CONCLUSION

The Peruvian case represents an effort to establish a comprehensive regulatory framework for artificial intelligence. That effort must contend with competing political interests, the demand for technical rigor, and the need for regulations tailored to Peru's circumstances. It also offers a useful vantage point on the gap between what regulation prescribes and how it is applied—the distance between how government agencies and citizens actually use these tools and how companies in the market behave.

The combination of a framework law (Law 31814), a detailed implementing regulation (Supreme Decree 115-2025-PCM), and criminal provisions addressing AI misuse (Law 32314) demonstrates an attempt to establish comprehensive regulations. The framework's speech-protective features—including prohibitions on mass surveillance without a legal basis, open-source mandates for publicly funded AI, and a risk-based approach that does not treat generative AI as inherently dangerous—represent meaningful commitments to preserving the conditions for free expression.

Yet three structural tensions threaten to undermine these commitments. First, prohibitions without a dedicated sanctions regime renders key protections largely aspirational. The ethical guidelines mandated by the regulation remain unpublished, and no judicial case has tested any AI-specific provision. Second, formal prohibitions on real-time biometric identification in public spaces coexist with documented expansion of facial recognition across Lima's camera network, including deployment specifically targeting protesters and journalists. Third, the absence of explicit protections for satire, parody, and artistic expression in AI-specific criminal provisions, particularly the defamation aggravating factor, risks chilling legitimate speech in a country where criminal defamation has historically been used to silence critics.

More positively, Peru's indigenous-language AI initiatives represent a genuine and distinctive contribution to linguistic pluralism and access to information. Projects such as

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Quispe Chequea, Illariy, and AI-MARA demonstrate how generative AI can serve as a tool for expanding — rather than constraining — the right to receive and impart information in one's own language.

The April 2026 elections served as a stress test that Peru's regulatory framework was not yet equipped to pass: 700 disinformation alerts, proliferating deepfakes, and six million new young voters, all without specific legislation addressing AI-generated electoral content. That no specific regulation existed may have been, paradoxically, a protection — sparing Peru from the overbroad restrictions that courts in other jurisdictions have struck down. But the gap cannot persist indefinitely.

Looking ahead, the publication of the SGTD's ethical guidelines, the development of the National AI Strategy (ENIA 2030), and the maturation of the implementing regulation's phased obligations will be critical junctures. If Peru can pair its regulatory ambition with institutional capacity — particularly enforceable safeguards against surveillance abuses and protections for creative expression — its framework could serve as a model for the region. Without that institutional backbone, the risk remains that Peru's AI governance will achieve the form of rights protection without its substance.



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